Unequal in Value, Assumed Equal in Dignity: Aristotle, Rawls, and the Case for Inequality

Commentary 3

L. D. Visconte

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Argument

This essay examines whether people are equal, and how they ought to be treated if they are not. It begins from Aristotle's distinction between geometric equality, under which shares follow merit, and arithmetic equality, under which the law treats all parties as equal, and defends both against the socialist objection that legal equality masks economic inequality and the objection that merit is undefined. Merit is divided into external merit, the value of one's talents to others, which compensation follows, and internal merit, the sustained striving for perfection relative to one's capacity, whose reward is internal honor. Rawls receives a full exposition before the critique: his original position strips its choosers of everything human, maximin does not follow from rationality, his appeal to stability ignores the strain placed on the talented, and hypothetical consent is no consent at all. Nozick, Cohen, the regress objection, and Hayek press further, and the egalitarian alternatives of Temkin, Dworkin, Young, and Sandel fare no better. Distinguishing value from dignity, and working through five senses of dignity, the essay concludes that people are unequal in capacity and value and should be rewarded unequally, and that equal dignity, though it cannot be known and is likely false, must be assumed by society for it to function.

"For, to me justice speaks thus: 'Men are not equal.' "

— Nietzsche[1]

Within the literature, there are many definitions, expositions, and extrapolations on the subject of equality. However, for perhaps the most compelling distinction between types of

[1]Friedrich Nietzsche, *Thus Spoke Zarathustra*, pt. 2, "On the Tarantulas," in *The Portable Nietzsche*, trans. Walter Kaufmann (New York: Viking, 1954).

equality, Aristotle provides one of the most intuitive yet heavily debated theories. In the *Nicomachean Ethics*, Aristotle defines his maxim on the subject of equality as follows, using W. D. Ross's translation:

> "And the same equality will exist between the persons and between the things concerned . . . if they are not equal, they will not have what is equal, but this is the origin of quarrels and complaints—when either equals have and are awarded unequal shares, or unequals equal shares. Further, this is plain from the fact that awards should be according to merit . . . This sort of conjunction, then, is geometric proportion."[2]

Aristotle also provides another definition of equality:

> ". . . the justice in transactions between man and man is a sort of equality indeed, and the injustice a sort of inequality; not according to that kind of proportion, however, but according to arithmetical proportion. For it makes no difference whether a good man has defrauded a bad man or a bad man a good one . . . the law looks only to the distinctive character of the injury, and treats the parties as equal, if one is in the wrong and the other is being wronged."[3]

These excerpts provide the exact formulation of justice proposed in the *Nicomachean Ethics*: the synthesis of geometric and arithmetic equality, each in the social function where it best serves the betterment of society. For clarity, the former passage outlines geometric equality of proportion, sometimes known as proportional equality. The idea there is that discontent stems from a uniform distribution of shares among all people, and Aristotle offers the idea that shares in geometric proportion to one's merit will remedy this. By shares, Aristotle simply means anything of value, whether monetary, physical, property, and so on. In the second excerpt, Aristotle outlines arithmetic equality, which is mostly reserved for legal equality: to determine wrongdoing, both parties must be treated as equal (this is usually called formal equality, and Marxist critics have called it "bourgeois" equality)[4]. While nuanced, Aristotle essentially uses two distinct definitions of justice for two different societal situations: the former distributive, meaning the compensation individuals receive in all forms, and the latter, corrective, reserved for the legal setting.

However, four main objections, among many others, have been raised against Aristotle's theory of justice. Arithmetic equality, which can be viewed simply as equality before the law, has been attacked by socialist and Marxist critiques that are not without merit, but are

[2]Aristotle, *Nicomachean Ethics*, trans. W. D. Ross (Oxford: Clarendon Press, 1908), bk. V, ch. 3, 1131a20–b13.

[3]Aristotle, *Nicomachean Ethics*, bk. V, ch. 4, 1131b32–1132a6.

[4]Karl Marx, *Critique of the Gotha Programme* (1875), pt. I: "equal right here is still in principle—bourgeois right."

somewhat difficult to quantify and seem impractical. The socialist critique most often seen is that equality cannot be truly realized in the legal system if radical inequality of wealth exists outside it. Anatole France mocked this conception of justice:

> "The law, in its majestic equality, forbids the rich as well as the poor to sleep under bridges, to beg in the streets, and to steal bread."[5]

This is an ironic, yet not baseless, critique: the idea that arithmetic justice can mask systemic oppression through legal equality. The issue with this critique is twofold. Firstly, taken to its conclusion, it means that to treat everyone equally before the law, everyone must have equal wealth. That is not inherently an issue, but it forces the arguer to demonstrate that society ought to adopt socialism, which could be the single most difficult task in all of political philosophy, not to mention an unrealistic possibility, as Western societies in their current state will not be receptive to the argument. Secondly, this critique really only applies to economic crimes, and mostly to petty theft. While obviously not impossible, it is not a leap to assume that most wealthy people do not steal bread, and that economic crimes, from petty theft to large-scale fraud, happen in proportion to one's wealth: poor people don't usually defraud pension funds, and wealthy people don't usually steal bread. So while a hypothetically apt critique, it fails to justify an overhaul of the arithmetic legal system, because the problem is not widespread. There are stronger versions of France's objection as well, but they fall prey to the same issue. Even if the medium changes from stealing bread to unequal access to lawyers of varying quality, or to the setting of bail: in Western legal systems those accused of crimes are guaranteed a lawyer, and the purpose of bail is not to be inaccessible but to ensure that defendants appear at trial and to restrain those too dangerous to reenter society. While socialism may not be required to remedy these issues, unlike the one above, they still require leveling economic inequality, somehow forcing some of the more talented lawyers (not that public defenders are lacking, simply perhaps overworked to a degree where every case cannot receive the attention it needs) into a sort of perverse Dworkinian slavery of the talented. This makes the critique at least impractical to remedy, if not false, and France's objection serves only to show that pure arithmetic equality ought to be qualified; it in no way invalidates the theory.

Another critique concerns the definition of merit in Aristotle's geometric theory, specifically the subjectivity of "according to merit." This is perhaps the most common critique and also the most apt. It is sharpened by Aristotle's own view that some humans were "natural slaves" and that women possessed a lower capacity than men.[6] The issue is that merit here is a

[5]Anatole France, *The Red Lily* (*Le Lys rouge*, 1894), ch. 7.

[6]Aristotle, *Politics*, trans. Benjamin Jowett (Oxford: Clarendon Press, 1885), bk. I, ch. 5,

self-serving definition: democrats will argue that it is simply being a free citizen, oligarchs that it is wealth,[7] and a theory of distributive equality based on a subjective mechanism leaves the door open for unjust distributions of shares, to use Aristotle's own nomenclature. Within Aristotle's existing theory, however, a qualification of merit can make the definition more tenable, and less open to being used to justify oppression. Aristotle's aristocrats argued that *aretē*, meaning both excellence and virtue, is the true basis of merit, and Aristotle also says:

> "Honour is the prize of virtue, and it is to the good that it is rendered."[8]

So, to borrow a phrase concerning justice from Rawls, if justice is the first virtue of institutions, excellence is the first virtue of the individual,[9] which means the argument can be written as follows: merit is derived from virtue, and honor is the outcome of virtue. Importantly, honor here does not depend on external validation; in fact, Aristotle rejects external honor as the highest good in Book I of the *Nicomachean Ethics*:

> "[M]en seem to pursue honour in order that they may be assured of their goodness; at least it is by men of practical wisdom that they seek to be honoured, and among those who know them, and on the ground of their virtue; clearly, then, according to them, at any rate, virtue is better."[10]

It is clear, then, that in Aristotle's view virtue is a far better pursuit than external validation or external honor, and that in the pursuit of virtue we will in turn gain internal honor, as honor is the "prize" of virtue. However, a more rigorous definition of merit may include a qualification of Aristotelian merit. Perhaps instead of merit as excellence or virtue, it may be better to say that internal merit is virtue sustained over time. This excellence over time can be connected to the idea in Commentary 1 that excellence is striving for realist perfection over time, and this gives a more coherent definition of internal merit within the framework: internal merit depends not on achievement, birth, or wealth, and will chiefly produce a feeling of internal honor; external validation may come with it, but it is not the goal. While this obviously does not escape the issue that internal merit, like merit in the Aristotelian tradition, is not measurable, in reality it fails to matter, as a distinction must be drawn between what you merit in the outside world, what you merit within yourself, and how

1254a–1255a, on natural slaves; bk. I, ch. 13, 1260a, where the woman is said to have the deliberative faculty, "but it is without authority."

[7]Aristotle, *Nicomachean Ethics*, bk. V, ch. 3, 1131a25–29.

[8]Aristotle, *Nicomachean Ethics*, bk. IV, ch. 3, 1123b35.

[9]John Rawls, *A Theory of Justice* (Cambridge, MA: Harvard University Press, 1971), §1, p. 3.

[10]Aristotle, *Nicomachean Ethics*, bk. I, ch. 5, 1095b26–31.

one ought to treat others. The first, external merit, is determined by judgeable talents, skills, and the like, which provide utility in proportion to your compensation. The second, internal merit, is what you merit within yourself: your internal honor, or internal self-compensation, ought to be tied to the striving for perfection, acknowledging that you may and will not succeed in every endeavor, in a seemingly and likely absurd world. The third is moral worth, or dignity, which is discussed at length later in this section, and which engages with and draws heavily on Aristotle's principle of arithmetic equality. These three terms are used in exactly these senses for the rest of this essay. External merit is what one merits in the outside world: the value of one's talents and skills to others, which can be judged, and which compensation follows. Internal merit is what one merits within oneself: excellence in the sense of Commentary 1, the sustained striving for perfection whatever the outcome, which no one else can measure and whose reward is internal honor. Dignity, or moral worth, is what governs how others ought to be treated. The first is paid, the second is earned, and the third, as will be argued, must be assumed.

A further criticism comes from universalists in the field of human rights, who argue that under Aristotle's theory you have a right only to what you can merit, which lacks any concept of inalienable rights, or any fallback for the less capable such as universal healthcare, disability protections, or protections for the elderly. This is largely an apt critique, but Aristotle, writing centuries before any of these concepts took form, cannot be blamed for their absence from his work. That does not invalidate the critique; it simply means that hard-line Aristotelian frameworks will often fall short of moral standards we take for granted today, which does not invalidate Aristotle's work either. It must be qualified, not accepted as implementable in its raw form. This can be done by holding that everyone must be strictly equal before a court of law, and that society ought to treat everyone with dignity, although it is likely they do not possess it in equal quantity. This could even be extended to Frankfurt's idea of a sufficiency floor: everyone ought to have "enough,"[11] and above that floor, reward is proportional to one's value to society, that is, to one's external merit.

A final major objection comes from luck egalitarians, whose thinking was shaped above all by the philosopher John Rawls (note here that I despise ad hominem attacks against philosophical thinkers as a way to bypass logical criticism of their arguments; however, with Rawls you will have to permit me one: he is perhaps the most often elevated, most misunderstood, and most pretentious and entitled philosopher I have ever had the bad "luck" of reading). I do not say this lightly, nor should it influence your reading of Rawls or your views on his argument; in fact, it stems more from a lapse in my self-control every time

[11]Harry G. Frankfurt, "Equality as a Moral Ideal," *Ethics* 98, no. 1 (1987): 21–43; and *On Inequality* (Princeton: Princeton University Press, 2015).

some two-bit undergraduate student misapplies the veil of ignorance or extends the difference principle to completely unrelated topics. My view here is largely a response to the fact that Rawls's natural-lottery premise rests on what he calls "one of the fixed points of our considered judgments,"[12] and his method, reflective equilibrium, tests theories against "our" intuitions.[13] Whose intuitions, in reality? His milieu's. That is the substantive form of the "pretentious" I used above. Presenting one seminar room's intuitions as fixed points everyone shares is a textbook example of the false consensus effect,[14] which Rawlsian thinkers wrap in an egalitarian framework to present their claims as objectively beneficial to the "everyman," failing to realize that perhaps gut intuition should not underlie our entire social structure; perhaps, just perhaps, that is a black-and-white oversimplification of our incredibly grey and complex world. Nevertheless, Rawls will be discussed at length in this section, with his arguments analyzed without bias, along with several critiques of them present in the modern literature.

Any serious argument for inequality must reckon with John Rawls, for better or worse, whose *A Theory of Justice* (1971) is perhaps the most influential work of political philosophy of the twentieth century, and which remains arguably the strongest case for equality ever made. It is therefore critical to set out his argument in full before turning to its faults. Rawls wrote largely in response to utilitarianism. His objection was that utilitarianism would permit sacrificing some individuals for the greater good of others, and in doing so, as he put it, "does not take seriously the distinction between persons."[15] In its place, Rawls proposed what he called "justice as fairness," which begins from the claim that justice is "the first virtue of social institutions."[16] His subject is not individual conduct but the basic structure of society: the constitution, the economy, the legal system, and so on.

To determine what a just structure truly is, and what it ought to look like, Rawls asks readers to imagine choosing the principles of their society from behind what he calls the veil of ignorance, in a hypothetical situation he names the original position. Behind the veil, Rawls says:

> "no one knows his place in society, his class position or social status, nor does any one know his fortune in the distribution of natural assets and abilities, his

[12]Rawls, *A Theory of Justice*, §17, p. 104.

[13]Rawls, *A Theory of Justice*, §4 and §9.

[14]Lee Ross, David Greene, and Pamela House, "The 'False Consensus Effect': An Egocentric Bias in Social Perception and Attribution Processes," *Journal of Experimental Social Psychology* 13, no. 3 (1977): 279–301.

[15]Rawls, *A Theory of Justice*, §5, p. 27.

[16]Rawls, *A Theory of Justice*, §1, p. 3.

intelligence, strength, and the like."[17]

Basically, individuals do not know whether they will be born rich or poor, gifted or ordinary, healthy or sick, nor what their underlying values will be throughout their lives. The idea here is that if you do not know who you will be, you cannot rig the rules in your favor, and so whatever principles you would choose under those conditions are, by definition, fair. What these choosers decide over are what Rawls calls primary goods, the things anyone would want: rights and liberties, opportunities, income and wealth, and, most important of all in Rawls's view, the social bases of self-respect.[18]

Rawls argues that rational people behind the veil would choose two principles. The first is that each person has an equal right to the most extensive system of basic liberties compatible with the same liberties for everyone else: freedom of speech, of conscience, of the person, the right to vote, and so on. The idea behind this is that if you don't know what position in society you will occupy, it is best to protect against your worst-case scenario, which Rawls calls the maximin principle. The second principle is that social and economic inequalities are permitted only if they are:

> "(a) to the greatest benefit of the least advantaged . . . and (b) attached to offices and positions open to all under conditions of fair equality of opportunity."[19]

The first part of the second principle is the famous difference principle; the second requires not merely that careers be legally open to all, but also that people of similar talent and motivation have similar chances to occupy them. The principles are ranked: liberty cannot be traded for wealth, and fair opportunity comes before the difference principle (the idea that any inequality must benefit the worst-off). Rawls holds, as stated above, that behind the veil the rational strategy is the maximin rule, a decision rule related to, though not the same as, the minimax theorem of game theory. Since individuals have no basis for estimating the odds of where they will land, the stakes are their entire lives, and some outcomes, such as being born into a caste with no rights, are simply unacceptable, you would protect yourself against the worst case rather than gamble on the best.[20] Clearly Rawls was not a poker player, although, ironically enough, he does use a series of fair bets as an example of a procedure whose outcome is fair whatever it turns out to be, emphasizing that the idea isn't

[17]Rawls, *A Theory of Justice*, §3, p. 12; see also §24.
[18]Rawls, *A Theory of Justice*, §15 and §67.
[19]Rawls, *A Theory of Justice*, §46, p. 302.
[20]Rawls, *A Theory of Justice*, §26.

to micromanage individuals' wealth, but to make sure the rules of the game are fairly set.[21]

Rawls argues that talent is a matter of luck:

> "It seems to be one of the fixed points of our considered judgments that no one deserves his place in the distribution of native endowments, any more than one deserves one's initial starting place in society."[22]

He extends this beyond talent to character itself:

> "Even the willingness to make an effort, to try, and so to be deserving in the ordinary sense is itself dependent upon happy family and social circumstances."[23]

Rawls calls this the natural lottery, and he is careful about what he concludes from it:

> "The natural distribution is neither just nor unjust; nor is it unjust that persons are born into society at some particular position. These are simply natural facts. What is just and unjust is the way that institutions deal with these facts."[24]

It is important to be precise here, as Rawls is often straw-manned, and this is where it usually occurs. He does not argue for equal outcomes, nor that the talented should be prevented from using their talents or stripped of their gains. Inequality is permitted, even welcomed, so long as it works to the benefit of the worst-off: a surgeon may earn far more than a cleaner if that inequality is what draws people into medicine and so raises the position of everyone, including the cleaner. Rawls also does not deny that people should receive what the rules promise them; he distinguishes moral desert, which he rejects as a basis for distribution, from what he calls "legitimate expectations," the rewards people are entitled to under just institutions once those institutions are in place.[25] Finally, Rawls offers a basis for human equality itself, arguing that people are owed equal justice because they share, above a minimum threshold, the capacity for moral personality, meaning a sense of justice and a conception of their own good. Rawls does not distinguish between the amounts of moral personality individuals may have, only that everyone has it; he calls this a "range property."[26] In his later work, *Political Liberalism*, and the paper "Justice as Fairness: Political not Metaphysical," Rawls went further still, presenting his theory not as a claim about the true

[21] Rawls, *A Theory of Justice*, §14, pp. 85–86.
[22] Rawls, *A Theory of Justice*, §17, p. 104.
[23] Rawls, *A Theory of Justice*, §12, p. 74.
[24] Rawls, *A Theory of Justice*, §17, p. 102.
[25] Rawls, *A Theory of Justice*, §48.
[26] Rawls, *A Theory of Justice*, §77, p. 508.

nature of persons but as a political conception that citizens with very different beliefs could all accept.[27]

Any reader can see why Rawls is so beloved, especially in political philosophy, as his framework gives egalitarians a bench on which to rest their theories and ideals, and he does so practically, through the difference principle. However, Rawls is not without his critics.

Some critics take aim at the very heart of his experiment, and this is a particularly thought-provoking, if perhaps overly practical, critique. Behind the veil of ignorance, they hold, Rawls is not testing what the individuals within society want; he is testing what a purely rational agent, stripped of all identifying human markers, would select under no external pressure. And many have no doubt that a purely rational agent would select the society with the least risk. However, purely rational agents stripped of the traits that make them human are fundamentally no longer human. If you took person A and stripped them of everything unique about them, and did the same to person X, then person A and person X, along with every other person, would no longer be unique. This is not an issue within Rawls's framework, to be clear; the issue arises when it is extrapolated. Rawls's experiment is designed to answer the question of which society *we* would want to live in. If Rawls had argued only for the society in which purely rational, risk-averse robots wished to find themselves, his framework would be extremely convincing. This is a point that runs parallel to Sandel's critique of the unencumbered self, though to a different end.[28]

This distinction draws out a flaw in Rawls's system: humans are not inherently risk-averse, and risk aversion, or the maximin strategy, does not follow from rational principles. (Note that this work employs such a strategy often to resolve complex topics, but only where the expected value of an outcome and the maximin strategy agree, as they do in Commentary 2, where acting as if free is a weakly dominant strategy.) Suppose an individual behind the veil were offered a ten percent chance of being born a noble under the operating principles of aristocratic seventeenth-century French society, and a ninety percent chance of being born a commoner. Perhaps a ten percent chance is high enough, considering the reward of being a noble and rubbing shoulders with Louis XIV at Versailles, to risk working as a cobbler in Paris. Under Rawls's framework, the chance of ever working one's way up to the wealth and power of a French noble is extremely low if every inequality must benefit the

[27]John Rawls, *Political Liberalism* (New York: Columbia University Press, 1993); "Justice as Fairness: Political not Metaphysical," *Philosophy & Public Affairs* 14, no. 3 (1985): 223–251.

[28]Michael J. Sandel, *Liberalism and the Limits of Justice* (Cambridge: Cambridge University Press, 1982); "The Procedural Republic and the Unencumbered Self," *Political Theory* 12, no. 1 (1984): 81–96.

least well-off, so it is not illogical that some less risk-averse agents would choose the greatest possible reward, which is not available under Rawls's difference principle. This applies to other thought experiments as well. If a man in New York is offered his dream job in Chicago, the maximin strategy tells him to reject it, since the plane he takes to Chicago might crash, or, if he drives, he might be in a fatal accident. The example is Harsanyi's, from "Can the Maximin Principle Serve as a Basis for Morality? A Critique of John Rawls's Theory."[29] Harsanyi in fact used a principle much like the veil of ignorance, years before Rawls, and reached utilitarianism, not the difference principle Rawls supports.[30]

Rawls himself does respond to this objection, but does so by moving the goalposts, and arguably rigging the game himself. In *Justice as Fairness: A Restatement* (2001) he answered the critique in several ways.[31] He insisted that behind the veil you do not know the probabilities; however, even without probabilities, his maximin strategy still does not follow. The principle of insufficient reason holds that, with no information favoring one outcome over another, each should be treated as equally likely, and applying expected value to those probabilities leads to a Harsanyian outcome, not a Rawlsian one. Some decisions don't require expected value, namely when a dominant strategy is present, but behind the veil, in the original position, nothing is dominant, so a rational agent, to use Rawls's own word, would default to expected value, and, with probabilities hidden, would further default to Laplace's principle of insufficient reason and decide from there.[32] Rawls responds by arguing that the maximin strategy rests on stability: the idea that people must be able to live with the choices they make, and that a society must sustain itself over generations, since societies that exploit a group of people often breed resentment and instability.[33] This is fine, but Rawls is moving the goalposts again here, and frankly it seems relatively clear that rational people make bets with ruinous downsides all the time: they found companies, most of which will fail; they emigrate to countries where they know no one; they enter careers, from acting to professional

[29]John C. Harsanyi, "Can the Maximin Principle Serve as a Basis for Morality? A Critique of John Rawls's Theory," *American Political Science Review* 69, no. 2 (1975): 594–606.

[30]John C. Harsanyi, "Cardinal Utility in Welfare Economics and in the Theory of Risk-Taking," *Journal of Political Economy* 61, no. 5 (1953): 434–435; and "Cardinal Welfare, Individualistic Ethics, and Interpersonal Comparisons of Utility," *Journal of Political Economy* 63, no. 4 (1955): 309–321.

[31]John Rawls, *Justice as Fairness: A Restatement*, ed. Erin Kelly (Cambridge, MA: Harvard University Press, 2001), pt. III, §§27–33.

[32]Pierre-Simon Laplace, *A Philosophical Essay on Probabilities* (1814), trans. Frederick Wilson Truscott and Frederick Lincoln Emory (New York: Dover, 1951).

[33]Rawls, *Justice as Fairness: A Restatement*, §29; *A Theory of Justice*, §29, on the strains of commitment.

sport, in which most who try never succeed. They make those choices knowing they could be wrong, and this decision behind the veil should function no differently. The argument from stability also rests on a misreading of history: even some of the more rigid, exploitative, and hierarchical societies lasted for centuries and were at some point considered stable, so the idea that equality is the ground of stability misrepresents actual civilizational history. It should be conceded that some exploitative societies do fall, such as eighteenth-century France, yet they almost never fall solely because of class exploitation, but from a variety of factors, including oppression but also geopolitical pressures, economic constraints, weak leadership, and so on. It should also be granted that the commoners of eighteenth-century France felt exactly the strain Rawls describes, and 1789 is the proof; but the difference principle merely moves that strain up the ladder, asking the most able to accept that every gain they earn is permitted only insofar as it benefits someone else. Rawls counts the resentment of the cobbler and ignores the resentment of the surgeon, and a society that breeds bitterness at the top is no more stable than one that breeds it at the bottom. He also argued that a guaranteed baseline would be "good enough" for individuals.[34] But this runs counter to our understanding of human psychology, as while some certainly fall into this good-enough camp, it is a logical leap to assume that all individuals, especially those with the psyche of billionaires or French kings, for whom enough is never enough, would submit to the middle-class proposition of "good enough." The other noteworthy, yet unsuccessful, response Rawls offered was that the stakes of the game are your entire life and your children's lives. However, this is escapism: Rawls attempts to force his position through by masking uncertainty as fear. All in all, Rawls weighs his original position down until agents behind the veil are forced to be risk-averse, which destroys the premise of his argument, namely that the society chosen cannot be rigged by anyone. Within his own argument, Rawls rigs the original position in his favor, so that the only outcome an original position burdened by constant over-parametrization can produce is the one that supports Rawls's own philosophical position.

Rawls's framework is brought further into question because his original position, now rigged to serve Rawls's political beliefs, relies on hypothetical consent: the idea that rational agents *would* consent if this were their situation. To see why this matters, it helps to recall why consent theorists turned to hypothetical consent in the first place. Actual consent means genuine voluntary authorization, whether explicit or tacit, and tacit consent, consent inferred from conduct such as remaining within a state's territory, using its institutions, or accepting its protections (driving on highways, accepting food stamps, and so on), was the traditional answer to the obvious objection that almost no one ever explicitly agrees to the society they are born into. Hume dismantled that answer, arguing:

[34]Rawls, *A Theory of Justice*, §26, p. 154; *Justice as Fairness: A Restatement*, §28.

> "Can we seriously say, that a poor peasant or artisan has a free choice to leave his country, when he knows no foreign language or manners, and lives from day to day, by the small wages which he acquires? We may as well assert, that a man, by remaining in a vessel, freely consents to the dominion of the master; though he was carried on board while asleep, and must leap into the ocean, and perish, the moment he leaves her."[35]

Continued residence does not imply consent when the only alternatives are exile, poverty, or the ocean.

Hypothetical consent is the escape from Hume's ship. Instead of asking whether anyone actually agreed, it asks what individuals would agree to under impartial conditions, regardless of their actual circumstances. It avoids Hume's objection, but it does so by abandoning the very thing that gave consent its force. Firstly, actual consent and hypothetical consent are not equivalent propositions: you cannot hypothetically sign a bank loan, and treating the two as equivalent would allow anyone to justify almost any system simply by claiming that individuals acting "rationally" would have agreed to it. Secondly, the agent behind the veil lacks precisely the knowledge, of position, talent, and values, that the real people whose consent is being modeled possess, and since that knowledge bears directly on what a person would agree to, it is unclear how an agent that reflects no existing human being can speak to anyone's consent, hypothetical or not. This is the same problem raised above, now in the language of consent: a human stripped of everything human cannot consent on behalf of humans. Even Ronald Dworkin, himself an egalitarian and no friend of inequality, conceded the point, arguing that a hypothetical contract is no contract at all.[36] Hypothetical consent therefore mitigates Hume's objection but does not preserve the justificatory force of actual consent. It cannot generate real obligations for individuals fundamentally distinct from the abstract representative who supposedly agreed on their behalf.

Another critique comes from Robert Nozick, in *Anarchy, State, and Utopia*. A large part of Rawls's argument is that the natural lottery is not "fair," and that people's lives should not be determined by something outside their control. Nozick counters that even if the distribution of natural talents is arbitrary from a moral standpoint, individuals still hold a right of self-ownership over their own minds and bodies. To treat these natural assets as "common property" is to fundamentally undermine individual autonomy. According to Nozick, holdings are just if they arise from a history of legitimate acquisition or voluntary

[35]David Hume, "Of the Original Contract" (1748), in *Essays, Moral, Political, and Literary*, ed. Eugene F. Miller (Indianapolis: Liberty Fund, 1987), 475.

[36]Ronald Dworkin, "The Original Position," *University of Chicago Law Review* 40, no. 3 (1973): 500–533, at 501; reprinted in *Taking Rights Seriously* (Cambridge, MA: Harvard University Press, 1977), ch. 6.

transfer, so the state has no right to strip people of the fruits of their natural abilities under the guise of correcting cosmic unfairness. Nozick says this directly:

> "Whether or not people's natural assets are arbitrary from a moral point of view, they are entitled to them, and to what flows from them."[37]

Essentially, this critique sidesteps the morality of the natural lottery and focuses instead on practical outcomes. It comes, however, with several important nuances. Rawls's argument is not principally one of ex-post redistribution; it seeks to establish a fair baseline from the very beginning. Nozick, and other libertarian philosophers, see this as semantic sleight of hand, arguing that by treating talent and skill as common property, Rawls is essentially acting as a utilitarian, sacrificing the individual for the common good, which is the exact theory Rawls was largely writing against. In reality, moreover, we cannot reinvent the rules of society from the ground up, and even if we could, Rawls's theory would still depend on ex-post redistribution to keep the baseline intact. This is where Nozick's famous critique comes in: redistribution is a fundamental violation of individual liberty, and talents and skills, natural or not, are an individual's own, so they are entitled to the rewards those skills bring. This is a substantial objection; however, it is less a direct flaw in Rawls's framework than a clash of values, total individual liberty against equality of opportunity, yet it still serves as an important counterpoint to Rawls's egalitarian system.

It is also noteworthy that G. A. Cohen, the famed socialist, attacks Rawls from the left. In his work *Rescuing Justice and Equality*, Cohen argues that if talented people demand incentives to work harder, they are holding the worst-off hostage under the difference principle.[38] This critique is meaningful in some situations where a Rawlsian framework is introduced, but it requires nuance depending on the social structures involved. It does show, however, that Rawls is squeezed from both left and right, not only by right-wing libertarians.

There are two more mainstream, and more technical, critiques of Rawls that ought to be addressed as well. The first is the regress objection, which concerns Rawls's treatment of desert. It bypasses the morality of the natural lottery and focuses instead on a deeper systemic flaw: the structural impossibility of Rawls's demands. By requiring an individual to deserve the basis of their desert, and the basis of that basis, ad infinitum, Rawls sets a standard no human could ever meet.[39] This is a brilliant philosophical move because it addresses Rawls on a structural level, arguing that his theory doesn't dismantle desert

[37]Robert Nozick, *Anarchy, State, and Utopia* (New York: Basic Books, 1974), 226.

[38]G. A. Cohen, *Rescuing Justice and Equality* (Cambridge, MA: Harvard University Press, 2008), ch. 1.

[39]Nozick, *Anarchy, State, and Utopia*, 225; George Sher, *Desert* (Princeton: Princeton University Press, 1987), ch. 2.

through rigorous trial; it simply defines it out of existence from the start. This regress, it must be admitted, is the same one this book turned against compatibilism in Commentary 2, and it is as true here as it was there: no one ultimately authors their own will or deserves their own talents. But a standard no one can meet is useless as a rule for institutions, and so, just as we must act as if free, society must act as if desert exists, which is precisely the political rather than metaphysical treatment Rawls himself demands for equality.

This is an incredibly poignant critique because it exposes the logical gymnastics required to maintain a purely egalitarian framework in general. When philosophers like Joel Feinberg, George Sher, and David Miller defend desert by arguing that a desert basis merely needs to belong to you, not to have been earned by you through some cosmic pedigree,[40] they are doing more than defending "hard work." They are illustrating that Rawls's argument that talent is luck and luck isn't fair relies on a category mistake. By demanding that people engineer their own DNA before they can claim ownership of their efforts, Rawls's framework becomes vulnerable to the charge of being a semantic trap rather than a realistic theory of human agency.

Furthermore, this critique is meaningful because it shifts the entire battleground of the distributive justice debate. Instead of getting bogged down in whether a genetic lottery is "fair," a debate that often ends in stale ideological impasse, the regress objection attacks the coherence of the Rawlsian structure itself. It demonstrates that the moment you detach effort from identity, you don't achieve a blank slate of fairness; you erase the concept of individual achievement entirely.

This is a convenient transition to the next critique, which also concerns a category error Rawls makes, and comes from Friedrich von Hayek. Rather than haggling over whether a specific distribution of wealth is morally defensible, Hayek targets the structural reality of a free society. In a spontaneous market order, there is no grand distributor or central office doling out rewards according to a master plan. Wealth distribution is merely the aggregate, unintended outcome of millions of independent transactions.[41] To call a market outcome "unjust" is to anthropomorphize a decentralized system; it makes as much sense as shaking your fist at a thunderstorm, and the thunderstorm does not care. It is a conceptual pivot: Hayek isn't arguing that Rawls's idealized distribution is bad; he is arguing that treating a free society like a pie waiting to be divided is logically untenable. It is worth noting that

[40] Joel Feinberg, "Justice and Personal Desert," in *Doing and Deserving* (Princeton: Princeton University Press, 1970), 55–94; Sher, *Desert*; David Miller, *Principles of Social Justice* (Cambridge, MA: Harvard University Press, 1999), chs. 7–9.

[41] F. A. Hayek, *Law, Legislation and Liberty*, vol. 2, *The Mirage of Social Justice* (Chicago: University of Chicago Press, 1976).

Hayek himself remarked, in the preface to *The Mirage of Social Justice*, that his disagreement with Rawls was more verbal than substantial,[42] yet that does not prevent taking his critique of patterned justice and basing a critique of Rawls's theory loosely on its principles.

What makes this critique particularly potent is how seamlessly it maps onto the distinction between personal dignity and economic value. Hayek cleanly decouples moral merit, an individual's internal effort or character (what this essay calls internal merit), from market value, what a contribution happens to be worth to others (external merit).[43] Crucially, no human institution possesses the omniscience required to measure or reward pure moral worth, which is essentially a knowledge problem. The market doesn't care how hard you tried; it cares only about utility. Grounding this in a dignity and value framework reveals that an economic outcome is never a verdict on human worth, exposing the folly of forcing a pricing mechanism to double as a spiritual scorecard.

Ultimately, this critique exposes the steep authoritarian price tag attached to any patterned theory of justice. Forcing a decentralized market to conform to a preconceived notion of fairness, or to a difference principle, requires a central authority to intervene constantly, override individual choices, and dictate economic reality. This is the same issue Hayek raises with socialism: that it isn't a moral question but a question of information and the speed at which you get it.[44] Hayek serves as a stark reminder that the pursuit of social justice inevitably requires the sacrifice of individual freedom, something Rawls's theory is reluctant to admit.

It is clear, then, that while not empirically falsifiable, Rawls's proposed solution is largely a hypothetical experiment, and one that seems skewed toward a specific, self-serving outcome. Simply because it is skewed toward an outcome does not prove it incorrect; but when a hypothetical experiment is skewed in the direction of its creator's bias, it is not illogical to stress-test its assumptions and soundness, and here, with these few examples among hundreds, Rawls's theory seems to fall short of a compelling, tenable framework for the construction and governance of a society. Rawls does, however, make some compelling points, as the exposition above shows, such as the idea that equality ought to be treated as a political reality rather than a metaphysical truth. He is also correct, and few reputable thinkers deny, that the natural lottery is luck; thought diverges because Rawls holds this luck to be unfair and in need of remedy, whereas other philosophers do not see a remedy, or at least Rawls's

[42]Hayek, *The Mirage of Social Justice*, preface, xiii.

[43]F. A. Hayek, *The Constitution of Liberty* (Chicago: University of Chicago Press, 1960), ch. 6, "Equality, Value and Merit."

[44]F. A. Hayek, "The Use of Knowledge in Society," *American Economic Review* 35, no. 4 (1945): 519–530.

specific remedy, as applicable or supportable.

Nonetheless, Rawls's is not the only theory of egalitarianism; it is perhaps the most common in political philosophy, but there are many others. For clarity and convenience, they can be grouped into two camps: strict egalitarianism and other egalitarianism, "other" meaning anything outside the strict form. Strict egalitarianism is usually what straw-man arguments refer to when discussing egalitarianism as a whole. In one sphere it is mainstream: Aristotle's arithmetic equality before the law. As a theory of outcomes, almost no modern academic holds that everyone is equal in any and all respects, or even that, averaged out over many respects, people are uniformly equal. Even hard-core Marxist and socialist thinkers do not believe in equality of outcome; most socialist doctrine (G. A. Cohen can serve as an example) allows for inequality arising from individual choice, just not from external forces, social structures, luck, intelligence, and so on.[45] Perhaps one of the more well-known strict egalitarians was Gracchus Babeuf, who rather famously demanded equality or death; he got the more fitting and logical of the two, as he was guillotined in 1797.[46]

The more interesting arguments come from other egalitarians, some of the most convincing of which are outlined below. In the current literature, some of the most intriguing, and perhaps most misread or miscited, arguments come from Temkin, Dworkin, and Sandel. There are also satirical pieces against meritocracy, such as Michael Young's *The Rise of the Meritocracy*, and dystopian pieces based on strict egalitarianism; although these in a sense straw-man egalitarian arguments, Vonnegut's "Harrison Bergeron" is nevertheless very well written.[47] Moving on to other egalitarianism, this section is largely a compilation of various egalitarian thinkers' arguments and frameworks, along with a critique of those systems.

Perhaps it is most appropriate to begin with the most abstract claim concerning equality, and from there narrow the frame of analysis. Larry Temkin, in *Inequality*, provides one of the more logically untenable claims, but nevertheless, Temkin alleges that inequality is bad in itself, arguing that for some to be better off, and some worse off, through no fault of their own is inherently bad.[48] And, bear with the argument here, as it is often quickly dismissed, and rightfully so, but can be logically declared unsupportable, as it seems as if blinding those who can see, crippling those who can walk, and maiming those who are uninjured perhaps

[45]G. A. Cohen, "On the Currency of Egalitarian Justice," *Ethics* 99, no. 4 (1989): 906–944.

[46]The demand is from Sylvain Maréchal's *Manifesto of the Equals* (1796), written for Babeuf's Conspiracy of the Equals: "we want real equality or death." Babeuf was executed in May 1797.

[47]Michael Young, *The Rise of the Meritocracy, 1870–2033* (London: Thames and Hudson, 1958); Kurt Vonnegut, "Harrison Bergeron" (1961), in *Welcome to the Monkey House* (New York: Delacorte, 1968).

[48]Larry S. Temkin, *Inequality* (New York: Oxford University Press, 1993).

makes circumstances more equal in one respect, but certainly not more equitable, or logical in literally any other respect, which is the force of what Derek Parfit called the leveling-down objection.[49]

Ronald Dworkin offers the most sophisticated egalitarian alternative to Rawls, and, unusually for an egalitarian, one that takes responsibility seriously. In *Sovereign Virtue*, Dworkin argues that a just distribution should be ambition-sensitive but endowment-insensitive, meaning people should bear the consequences of their choices, but not of circumstances they did not choose. To illustrate, he imagines a group of shipwreck survivors on a desert island, each given an equal number of clamshells with which to bid for the island's resources at auction. The result is fair, Dworkin argues, if it passes his envy test: no one would prefer anyone else's bundle to their own.[50] Over time, some stranded islanders will work harder and some will rest, some will gamble and others will play it safe, and Dworkin is content to let those choices produce inequality, distinguishing "option luck," the results of risks one chose to take, from "brute luck," the results of risks one never chose, such as being born with little talent. Brute luck, he holds, should be offset, through a hypothetical insurance market in which society taxes and compensates at the rate people would have paid to insure against low talent, had they not known their own.[51] The issue here is that we are now punishing people not for being naturally incompetent, but for being lucky in the natural lottery, which leads to a "slavery of the talented." To Dworkin's credit, he saw this objection and tried to answer it, arguing that people would insure only modestly against low talent, so the premiums would never be crushing;[52] yet the answer rests on the same hypothetical market as the scheme it defends. Dworkin, apparently an actuary in another life, brings insurance premiums to the perverse support of equality with such authority that he wrote five hundred and some odd pages on the theory's self-dependent foundation and responses to objections. Needless to say, if common sense were a trait of the talented, perhaps Dworkin need not worry about being enslaved in his society. Even fellow egalitarians have turned on the school he founded. Elizabeth Anderson, who coined the term "luck egalitarianism," attacked it for abandoning those who make bad choices and for requiring the state to judge which hardships people have brought upon themselves,[53] and a theory its own author must warn against, and its own

[49]Derek Parfit, *Equality or Priority?*, Lindley Lecture (Lawrence: University of Kansas, 1995).

[50]Ronald Dworkin, *Sovereign Virtue: The Theory and Practice of Equality* (Cambridge, MA: Harvard University Press, 2000), ch. 2, originally "What Is Equality? Part 2: Equality of Resources," *Philosophy & Public Affairs* 10, no. 4 (1981): 283–345.

[51]Dworkin, *Sovereign Virtue*, ch. 2, on option luck, brute luck, and the hypothetical insurance market.

[52]Dworkin, *Sovereign Virtue*, ch. 2, on the "slavery of the talented."

[53]Elizabeth S. Anderson, "What Is the Point of Equality?," *Ethics* 109, no. 2 (1999): 287–337.

allies reject, is not the strongest ground on which to rest the case for equality.

There are other works on egalitarianism that, instead of offering unique solutions such as Dworkin's, use much of their length to critique meritocracy. Michael Young's *The Rise of the Meritocracy* is a satire, and a fine one at that, but one that skewers a meritocracy that measures merit by IQ plus effort and mistakes it for human worth, a meritocracy no serious defender has ever proposed. Michael Sandel's *The Tyranny of Merit* makes the same mistake at even greater, and more unfortunate, length.[54] The hubris of the winners, the humiliation of the losers, and the treatment of success as a verdict on worth are real enough in practice, but they are the failures of a meritocracy that refuses to distinguish between external merit and dignity, a confusion that again has little tenable support in modern literature.

Inequality is as diverse a tradition of thought as equality, and it divides into three main schools, along with a set of middle positions that reject equality without embracing inequality. The oldest is natural inequality, promoted by Aristotle, who argued that "from the hour of their birth, some are marked out for subjection, others for rule."[55] On this view, worth follows inborn capacity, and one's station is settled before one has done anything at all. It is the easiest form of inequality to dismiss, and for two reasons. Firstly, it discounts the time and discipline spent cultivating ability: if one individual possesses greater innate aptitude for mathematics but never develops it, while another reaches moderate ability through years of study, the latter is plainly the better mathematician, yet natural inequality would rank them the other way. Secondly, it is precisely the doctrine that has historically been used to justify slavery and caste, and Aristotle's own use of it to defend "natural slaves" is warning enough.

The second school is meritocratic inequality, or inequality of achievement, often thought of as the result of a meritocratic system even when opportunities are equal. Here inequality is earned rather than inherited: people end up unequal because they have done unequal things. Where it goes wrong is in mistaking achievement for worth. A meritocracy that compensates its winners well is just and largely defensible. However, one that tells its winners they are better, and its losers that they are worse, falls victim to the straw-man version of this theory that Young satirized and Sandel condemns, and the distinction between external merit and dignity exists to prevent it, which is discussed at length later in this section.

The third school is existential, often called excellence-based, inequality, which combines natural and meritocratic inequality, arguing for the existence of higher types of individuals while maintaining that these higher types must demonstrate excellence through their superior abilities. On the view defended here, the highest excellence is not evident superior ability,

[54]Michael J. Sandel, *The Tyranny of Merit: What's Become of the Common Good?* (New York: Farrar, Straus and Giroux, 2020).

[55]Aristotle, *Politics*, bk. I, ch. 5, 1254a23–24.

but internal merit, or the sustained striving for perfection relative to one's own capacity. That excellence is accessible across the board to everyone, from the two-bit undergraduate Rawlsian to the maximin diehard from New York who refuses to take a job in Chicago because he's protecting against a plane crash. The result is still an aristocracy or rare minority, but an aristocracy of character widely available to be selected for by anyone so choosing.

Between equality and inequality lie positions that reject the former without wholly embracing the latter. Prioritarianism, associated with Derek Parfit, holds that benefits to the worse-off matter more simply because they are worse off.[56] Sufficientarianism, associated with Harry Frankfurt, holds that what matters is not that everyone has the same, but that everyone has enough,[57] which is mentioned elsewhere in this section. Parfit's priority, since it weights the worse-off regardless of what they have done, is not tenable under this section's framework. Frankfurt's idea, however, is not inherently at odds with any arguments made here, and is in fact an interesting solution to guarantee a lack of general suffering, while allowing a sort of economic equality of opportunity for individuals to be able to select to strive on a wider scale, as questions of philosophical thought on an empty stomach underneath a bridge are obviously not of priority, and frankly nor should they be.

Such as the above discussion outlines, it is clear that egalitarian frameworks fall victim to some very serious flaws, and have had holes poked in them by libertarians and socialists alike. My position is composed of several premises and can be classed into two categories, the metaphysical and the physical, by which I mean, respectively, what is true of persons and how society ought to act given that truth. Before either can be set out, two important distinctions must be drawn.

The first distinction: value and dignity

This is where I will draw the first of two major distinctions, between value and dignity. Under this framework, value is determined by society under a market economy, and is related to Aristotle's definition of geometrically proportional equality, in which goods are distributed in proportion to merit. Value in this sense is not internal merit. As Hayek argues, internal merit, in the sense of moral desert, cannot be reliably measured, whereas value, what one's contributions are worth to others, can. Put simply, the market measures value; it does not define external merit, yet it is often the most reliable measure of external merit on which to base personal compensation.

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[56]Parfit, *Equality or Priority?*

[57]Frankfurt, "Equality as a Moral Ideal."

Dignity is harder to pin down. Some have labeled it a meaningless word,[58] but for the purposes of this paper it will serve as a symbolic term covering the following four definitions, drawn from Michael Rosen's *Dignity: Its History and Meaning*, along with a fifth of my own:[59]

1. **Dignity as status.** This is the original meaning of the word: the Latin *dignitas* meant the standing and honor of high office, and in Rome it was explicitly unequal. Status is conferred by society; it is a social construct, which is not to say it is unimportant, since law, rights, and money are social constructs too.

2. **Dignity as intrinsic worth.** This is Kant's definition, under which rational beings have a value above all price.[60] Earlier versions include the theological idea of being made in God's image, and Pico della Mirandola's *Oration on the Dignity of Man* (1486), where Pico argued that human dignity lay in our ability to "shape" ourselves.[61]

3. **Dignity as bearing.** This means behaving with dignity, which connotes composure, self-command, refusing to degrade oneself, and so on. This kind of dignity is plainly unequal, and it is earned rather than inherited, as people gain and lose it by how they conduct themselves.

4. **Dignity as respectful treatment.** This is a more modern definition, which largely came as a response to the Second World War. It is not a property a person has but a way of treating a person, and so it is less a rival definition than the practice the other three are used to justify.

5. **Dignity as excellence in conduct.** This definition is my own: dignity as the proper conduct of oneself in striving for perfection. It ties in with the definition of internal merit but is distinct from it. Internal merit is the striving, whereas dignity is how the striving occurs. If you strive for perfection, in a realist fashion, yet let the process tear you apart, cause irrationality, or anything else that would violate definition three, then perhaps you have internal merit, but you do not possess this dignity. Sisyphus didn't whine, nor complain without end or purpose, nor wallow in self-pity or shake his fist at

[58]Ruth Macklin, "Dignity Is a Useless Concept," *BMJ* 327 (2003): 1419–1420; Steven Pinker, "The Stupidity of Dignity," *The New Republic*, May 28, 2008.

[59]Michael Rosen, *Dignity: Its History and Meaning* (Cambridge, MA: Harvard University Press, 2012), ch. 1.

[60]Immanuel Kant, *Groundwork of the Metaphysics of Morals* (1785), 4:434–435.

[61]Giovanni Pico della Mirandola, *Oration on the Dignity of Man* (1486).

the universe as he rolled his boulder;[62] that is the depiction of both internal merit and dignity.

The second distinction: inequality seen from a distance

With the first distinction covered, I will, for the sake of clarity, outline the second. It is not an uncommon thought to admit that humans are unequal, but to hold that the degree to which they are unequal is inconsequential. Rawls offers the most rigorous version of this view: what matters is possessing a capacity above a certain threshold, and above it, having more or less makes no difference, just as a point well inside a circle is no more inside it than a point near its edge.[63] The problem with this thought is best explained by analogy. If you met one hundred labradoodles, none of them your own, they would appear rather similar. Of course they look a bit different in fur color, size, and so on, but to us their intelligence, friendliness, and every other internal trait may appear nuanced, not significantly divergent between any two dogs. If you were one of the dogs, however, the difference in intelligence might be stark, as might the differences in other traits. Essentially, to an outside observer, perception differs from internal reality. If a highly intelligent alien descended from outer space, it might see the difference between a Fields Medal winner and the village idiot as inconsequential, whereas to us the difference appears great. The premise this distinction supports is that an outside observer's perception of sameness cannot establish any significant degree of equality between those being observed; it reflects the distance of the observer, not the size of the differences. One might reply that the distant view is the correct one, that from the point of view of the universe our differences really are small. But the scale relevant to how humans ought to treat one another is the human one, and in reality no empirical claim can be made about the view of an outside observer, since we are all human.

The metaphysical argument

Now that both distinctions are outlined, the metaphysical analysis can proceed one definition of dignity at a time, after two premises about capacity and value.

First, capacity is unequal: in natural and learned ability, individuals differ, and often radically. Second, it follows that the value of differing individuals to society is also unequal, since value, as defined above, is what one's capacities and their use are worth to others.

Dignity as status (definition 1) is a social construct, and so the question it raises is not whether people possess it equally, but whether society ought to confer it equally. That is a

[62] Albert Camus, *The Myth of Sisyphus*, trans. Justin O'Brien (New York: Knopf, 1955).
[63] Rawls, *A Theory of Justice*, §77, p. 508.

practical question, and it is answered below.

Dignity as intrinsic worth (definition 2) is the heart of the matter. It is unclear whether dignity in this sense is uniform or follows the same distribution as capacity. There is a reason to suspect the latter: since every other human feature and development is unequal, it is difficult to see why dignity should violate that trend. Kant's answer is that dignity is not a degree at all: it is either something one possesses or something one does not, and all rational creatures possess it. This is compelling, but it is a claim about dignity's nature that is no more testable than the claim it answers, and so it cannot settle the matter either. Neither position can be empirically proved. My own view, then, is skeptical: we cannot know whether intrinsic dignity is equal, though I suspect it is not.

Dignity as bearing (definition 3) holds that dignity is unequal and relative to how one conducts oneself, which is perhaps apt, but it is not easily testable or quantifiable, and without that certainty we ought not treat each other in varying degrees according to an elusive concept that lacks verification.

Dignity as respectful treatment (definition 4) is a practical implementation rather than a fact about persons. It concerns an external action toward others, comparable to a debate about kindness in which one definition of kindness is simply being kind to others: true, yes, but not helpful in deciding who is owed what. Its place is in the practical argument, as its conclusion.

Dignity as excellence in conduct (definition 5) shares the fate of bearing. It is earned, unequal, and unquantifiable, since no one can see from outside whether another strives with composure or only appears to. It is therefore a standard by which one judges oneself, not a ranking by which society judges others: it accompanies internal merit as the manner of the striving, and it governs how one lives, not how one is treated.

Thus the entire discussion above illustrates the skepticism one ought to have concerning the fact of human dignity.

The physical, or practical, argument

On the practical side, it can be inferred from the metaphysical argument that since capacity is unequal, the value of differing individuals to society is also unequal, and goods and rewards ought to be distributed accordingly, in Aristotle's geometric proportion to external merit.

Dignity, however, must be treated differently. If society stopped assuming that every individual was of the same moral worth, this could not only be used to justify institutions of oppression, and in the twentieth century it was so used, to genocidal ends, but would also undermine the legal system, which must treat every party as equal for the purposes of blind

justice: justice not dependent on one's social class, position, or even dignity. Aristotle draws exactly this line. Alongside distributive justice, which is geometric, he describes corrective justice, which is arithmetic in the courts, as seen in the opening of this section.

The argument can therefore be stated as follows. Because intrinsic dignity (definition 2) cannot be known to be equal, and because a society that ceased to assume it would license oppression and collapse its system of justice, society must confer equal status (definition 1) on every person, as though their intrinsic dignity were equal, and that equal status in turn requires that everyone receive respectful treatment (definition 4). Society, and by extension all members of society, ought to treat everyone as such, with full knowledge that in reality the assumption is unlikely to be true. This equality is of legal standing and treatment, not of political authority or reward.

In conclusion, people are radically different in talents and capacities, and this dictates radically unequal social compensation. Worth, derived from dignity, is also likely unequal, but equality must be assumed, as Aristotle's arithmetic equality assumes it in the courts, for society to function stably.